

Lalman v. State of U.P. and 6 Others

High Court of Judicature at Allahabad · Division Bench · 7 July 2023 · 2023:AHC:134533-DB · WRIT - C No. 21414 of 2023 · **Writ disposed; disputed dues left to clause 6.5**

HEADNOTE

Writ challenging recovery of electricity dues disposed of. Dues up to 2016 were said to have been cleared with compounding charges in proceedings under Section 138(B) of the Electricity Act, 2003. If the consumer disputes the amount thereafter, he may approach the authority under clause 6.5 of the U.P. Electricity Supply Code, 2005, which is expected to consider the objection and pass appropriate orders.

FACTUAL SUMMARY

Lalman challenged recovery proceedings for unpaid electricity dues, saying he had deposited the amount with compounding charges and that no dues remained. The licensee's counsel said only dues up to 2016 had been cleared with compounding charges, as recorded by the Additional Sessions Judge/Special Judge (Electricity Act), Siddharth Nagar, on 14 January 2021 in proceedings under Section 138(B) of the Electricity Act, 2003, and that nothing had been paid thereafter, so recovery was ordered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed electricity dues after recorded clearance

HOLDING

A consumer who disputes electricity dues sought to be recovered after dues up to 2016 were recorded as cleared with compounding charges may approach the concerned authority under clause 6.5 of the U.P. Electricity Supply Code, 2005. That authority is expected to consider the objection and pass appropriate orders. The writ challenging the recovery is disposed of on that basis. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against recovery of disputed electricity dues was disposed of by leaving the consumer to raise the dispute before the authority under clause 6.5. ¶ 1

6.5-representation-as-appropriate-remedy If the consumer approaches under clause 6.5, the authority is expected to consider the objection and pass appropriate orders, without the Court deciding the dues. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ANY ELECTRICITY DUES REMAIN PAYABLE FOR THE PERIOD AFTER 2016

The Court did not affirm or quash the recovery. Any dispute over the amount was left to the clause 6.5 authority. ¶ 1